

BOARDROOM-READY • PRIVACY, REGULATORY, COMPLIANCE • 2026

Legal layouts.

Six anchors. Five variants per anchor. Pick the strongest of each row.

HOW TO READ THIS DECK

Each anchor opens with a section divider, then walks five visual treatments of the same idea.

Mark the one that earns the room. Slot labels lift via the slotLabelLift transform — author writes `- Federal`, not `- **Federal**`. The obligation matrix uses the universal `[x] [-] [ ]` state grammar shared with verdict-grid and checklist.

ANCHOR 01 · FEDERAL / STATE / LOCAL

How does authority layer here?

Children's data — three jurisdictions, three obligations.

FEDERAL

15 U.S.C. §6501 • COPPA

Verifiable parental consent for under-13 personal data.

Operators must post a clear notice and a deletion route.

In effect since 2000

STATE

Cal. Civ. Code §1798.120 • CCPA/CPRA

Opt-in for selling or sharing under-16 data; opt-out for over-16.

DSAR handling within 45 days; deletion verified.

Enforced 2023

LOCAL

NYC Admin Code §22-1201

Bias-audit obligation for AEDTs used in employment decisions.

Annual audit + candidate notice + public summary.

Effective 2023

Pick this when the room wants three parallel facts at a glance.

Children's data — Federal floor, State stricter, Local narrowest.

FEDERAL

15 U.S.C. §6501 • COPPA

Verifiable parental consent for under-13 personal data; nationwide floor.

STATE

Cal. Civ. Code §1798.120 • CCPA/CPRA

Opt-in for selling under-16 data; California raises the floor for its residents.

LOCAL

NYC Admin Code §22-1201

Annual bias-audit obligation for employment AEDTs; narrowest scope.

Pick this when the room needs to see scope shrinking as the tier descends.

Three jurisdictions, full prose, one row each.

FEDERAL 15 U.S.C. §6501 • COPPA Verifiable parental consent for under-13 PI; deletion within reasonable period. In effect since 2000
STATE Cal. Civ. Code §1798.120 • CCPA/CPRA Opt-in for selling or sharing under-16 data; 45-day DSAR response. Enforced 2023
LOCAL NYC Admin Code §22-1201 Annual bias-audit obligation for employment AEDTs; candidate notice required. Effective 2023

Federal floor → State adds opt-in → Local adds audit duty.



Pick this when the relationship between tiers is the point — not parallel facts.

Children's data — jurisdiction, citation, obligation, status.

JURISDICTION	CITATION	HEADLINE OBLIGATION	STATUS
FEDERAL	15 U.S.C. §6501	Parental consent for under-13 data	In effect 2000
STATE	Cal. Civ. Code §1798.120	Opt-in for selling under-16 data	Enforced 2023
LOCAL	NYC §22-1201	Annual bias audit for employment AEDTs	Effective 2023

Pick this when the audience wants to scan many obligations at once.

ANCHOR 02 · QUOTE → TRANSLATE → ACT

The verbatim regulation,
in plain English, with the
obligation.

CAL. CIV. CODE §1798.140(0) • CCPA/CPRA

What counts as "personal information" under CCPA.

"Personal information" means information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household.

In plain English: any data tied to a household or device, not just a named person — IP addresses, cookie IDs, and device fingerprints are all in scope.

What we must do

Treat household-level identifiers as PI in our notice, retention, and DSAR workflows. Audit pixel and tag inventory next quarter.

CAL. CIV. CODE §1798.140(0) • CCPA/CPRA

What counts as "personal information" under CCPA.

"Personal information" means information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household.

In plain English: any data tied to a household or device, not just a named person.

What we must do
Treat household-level identifiers as PI in notice, retention, and DSAR workflows.

CAL. CIV. CODE §1798.140(0) • CCPA/CPRA

"Personal information" includes the household, not just the person.

“

Information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household.

CAL. CIV. CODE §1798.140(0)

Personal information, defined.

Information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked with a particular consumer or household.

- Household IDs count.
- Device fingerprints count.
- Action
- Audit pixels next quarter.

CAL. CIV. CODE §1798.140(0) • CCPA/CPRA

Personal information — three columns, three jobs.

Information that identifies, relates to, describes, or could reasonably be linked with a particular consumer or household.

Plain English: household-level data is in scope, not just data tied to a named person. Device IDs, cookies, IP addresses all qualify.

Action
Audit pixel inventory and update DSAR workflow to handle household-level identifiers within 45 days.

ANCHOR 03 · REGIMES × OBLIGATIONS

Where every privacy
regulator stands on every
duty.

Privacy obligations across regimes — state grid.

REGULATION	NOTICE	CONSENT	RETENTION	BREACH	DSAR
GDPR	✓	✓	✓	✓	✓
CCPA/CPRA	✓	—	✓	✓	✓
LGPD	✓	✓	✓	✓	✓
PIPEDA	✓	✓	—	✓	—
HIPAA	✓	✓	✓	✓	—
GLBA	✓	—	—	✓	○

Filled · half · empty circles. Neutral ink — applies / partial / exempt as data.

Privacy obligations across regimes — heat map.

REGULATION	NOTICE	CONSENT	RETENTION	BREACH	DSAR
GDPR	✓	✓	✓	✓	✓
CCPA/CPRA	✓	—	✓	✓	✓
LGPD	✓	✓	✓	✓	✓
PIPEDA	✓	✓	—	✓	—
HIPAA	✓	✓	✓	✓	—
GLBA	✓	—	—	✓	○

Same grammar, semantic palette — red = applies, amber = partial, green = exempt.

Privacy obligations across regimes — same grammar, no heat.

REGULATION	NOTICE	CONSENT	RETENTION	BREACH	DSAR
GDPR	✓	✓	✓	✓	✓
CCPA	✓	—	✓	✓	✓
LGPD	✓	✓	✓	✓	✓
PIPEDA	✓	✓	—	✓	—
HIPAA	✓	✓	✓	✓	—
GLBA	✓	—	—	✓	○

Pills (no heat) — same data, neutral chrome. Less assertive than heat.

Privacy obligations — categorical row stripes.

REGULATION	NOTICE	CONSENT	RETENTION	BREACH	DSAR
GDPR	✓	✓	✓	✓	✓
CCPA/CPRA	✓	—	✓	✓	✓
LGPD	✓	✓	✓	✓	✓
PIPEDA	✓	✓	—	✓	—
HIPAA	✓	✓	✓	✓	—
GLBA	✓	—	—	✓	○

Lane stripes signal "this row is its own regime."

Three regimes, three obligations, room to breathe.

GDPR	Pre-collection; layered with purposes and legal basis	Opt-in; explicit for special-category data	30-day response; identity verification required
CCPA/CPRA	At or before collection; "Notice at Collection" required	Opt-out default for sale/sharing; opt-in for under-16 minors	45-day response; two free requests per consumer per year
LGPD	Pre-collection; controller identity disclosed	Opt-in for most processing; multiple legal bases recognised	15-day response; appeal route to the ANPD

Pick when each cell carries a sentence, not a glyph.

ANCHOR 04 · WHAT'S NEW

The regulatory motion that closed this quarter.

Privacy & AI motion — Q1 2026.

- 01

EU AI Act

Title III

Effective Feb 2026

Conformity-assessment pre-market obligation took effect.
- 02

Colorado AI Act

SB 24-205

Effective Feb 2026

Developer + deployer duties for consequential-decision systems.
- 03

FTC v. Avast

§5 unfairness

Final Mar 2026

\$16.5M consent order; clarifies the deception standard for privacy branding.
- 04

Texas DPSA

§541.151

Effective Mar 2026

DSAR opt-out portal mandatory; small-business safe-harbor narrowed.

Privacy & AI motion — Q1 2026.

01

EU AI Act

Title III

Effective Feb 2026

High-risk system conformity-assessment pre-market obligation took effect.

02

Colorado AI Act

SB 24-205

Effective Feb 2026

Developer + deployer duties for consequential-decision systems.

03

FTC Order

In re Avast

Final Mar 2026

\$16.5M consent order; browser-history sale despite privacy branding.

04

Texas DPSA

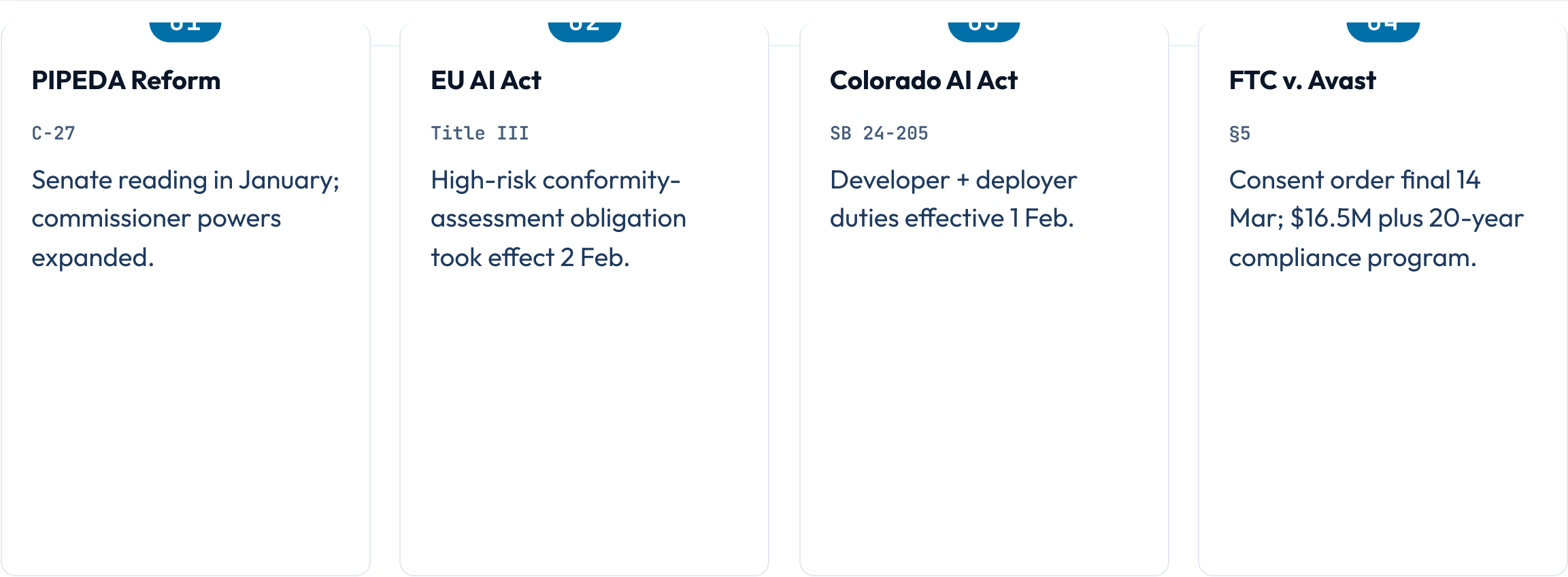
Bus. & Com. Code §541.151

Effective Mar 2026

DSAR opt-out portal mandatory; safe-harbor narrowed.

JANUARY → FEBRUARY → MARCH 2026

Privacy & AI motion — Q1 2026 timeline.



ADDED • AMENDED • REPEALED • ENFORCED

Privacy & AI motion — Q1 2026 by kind of change.

ADDED

First conformity-assessment obligation took effect across the bloc. **EU AI Act** Title III • high-risk systems

New developer + deployer duties for consequential-decision systems. **Colorado AI Act** SB 24-205

AMENDED

Opt-out portal mandatory; small-business safe-harbor threshold narrowed. **Texas DPSA** §541.151

ENFORCED

\$16.5M consent order finalised; 20-year compliance program. **FTC v. Avast** §5 unfairness

WHAT TO ACT ON, WHAT TO TRACK, WHAT TO LOG

Privacy & AI motion — Q1 2026 priorities.

- TIER 1

Act this quarter — EU AI Act

Title III

High-risk conformity-assessment paperwork pre-market; engineering deadline before any EU launch.
- TIER 2

Track — Colorado AI Act

SB 24-205

Developer + deployer duties; published deployer-notice template due in Q2.
- TIER 3

Log — FTC v. Avast

§5

Consent order final; informs how the FTC frames the deception standard.

ANCHOR 05 · TEXTUAL DIFF

What changed in the text we live by?

CAL. CIV. CODE §1798.135 • AMENDMENT SB-362 (2024)

SB-362 rewrote the opt-out link rule.

A business that ~~collects~~ collects, sells, or shares consumers' personal information shall provide ~~two or more~~ at least one designated method for submitting requests to opt-out, including, at minimum, a clear and conspicuous link on the homepage titled "Your Privacy Choices," for use by consumers to ~~opt out of the sale of~~ direct the business not to sell or share their personal information.

Why this matters SB-362 collapses "sale" and "sharing" into one duty and pins a uniform link title — homepage chrome and DSAR workflows both need a uniform UX.

CAL. CIV. CODE §1798.135 • BEFORE VS AFTER

SB-362 rewrote the opt-out link rule — side-by-side.

OLD

A business that **collects** consumers' personal information shall provide **two or more** designated methods for submitting requests to opt-out for use by consumers to **opt out of the sale of** their personal information.

NEW

A business that **collects, sells, or shares** consumers' personal information shall provide **at least one** designated method for submitting requests to opt-out, including a clear and conspicuous homepage link titled **"Your Privacy Choices,"** for use by consumers to **direct the business not to sell or share** their personal information.

Why this matters Sale and sharing collapse into one duty; the homepage chrome and DSAR workflows both need a uniform UX.

CAL. CIV. CODE §1798.135 • AMENDMENT SB-362

SB-362 — annotated.

A business that ~~collects~~ collects, sells, or shares¹ consumers' personal information shall provide ~~two or more~~ at least one² designated method for submitting requests to opt-out, including a homepage link titled "Your Privacy Choices,"³ for use by consumers to opt out.

- ¹ **Scope** Sale and sharing now both trigger the opt-out duty — even free programs are in.
- ² **Floor** Two-channel minimum drops to one; a homepage link plus a portal is now sufficient.
- ³ **Chrome** The literal link title is now mandated — uniform branding across the web.

CAL. CIV. CODE §1798.135 • AMENDMENT SB-362

SB-362 — old block on top, new block below.

~~OLD — prior text~~

~~A business that collects consumers' personal information shall provide two or more designated methods for submitting requests to opt out for use by consumers to opt out of the sale of their personal information.~~

NEW • current

A business that collects, sells, or shares consumers' personal information shall provide at least one designated method for submitting requests to opt-out, including a clear and conspicuous homepage link titled "Your Privacy Choices," for use by consumers to direct the business not to sell or share their personal information.

CAL. CIV. CODE §1798.135 • AMENDMENT SB-362

SB-362 — old, new, and why it changed.

OLD

A business that collects consumers' personal information shall provide two or more designated methods for opt-out — to opt out of the sale of personal information.

NEW

A business that collects, sells, or shares consumers' personal information shall provide at least one method, including a homepage link titled "Your Privacy Choices," to direct the business not to sell or share personal information.

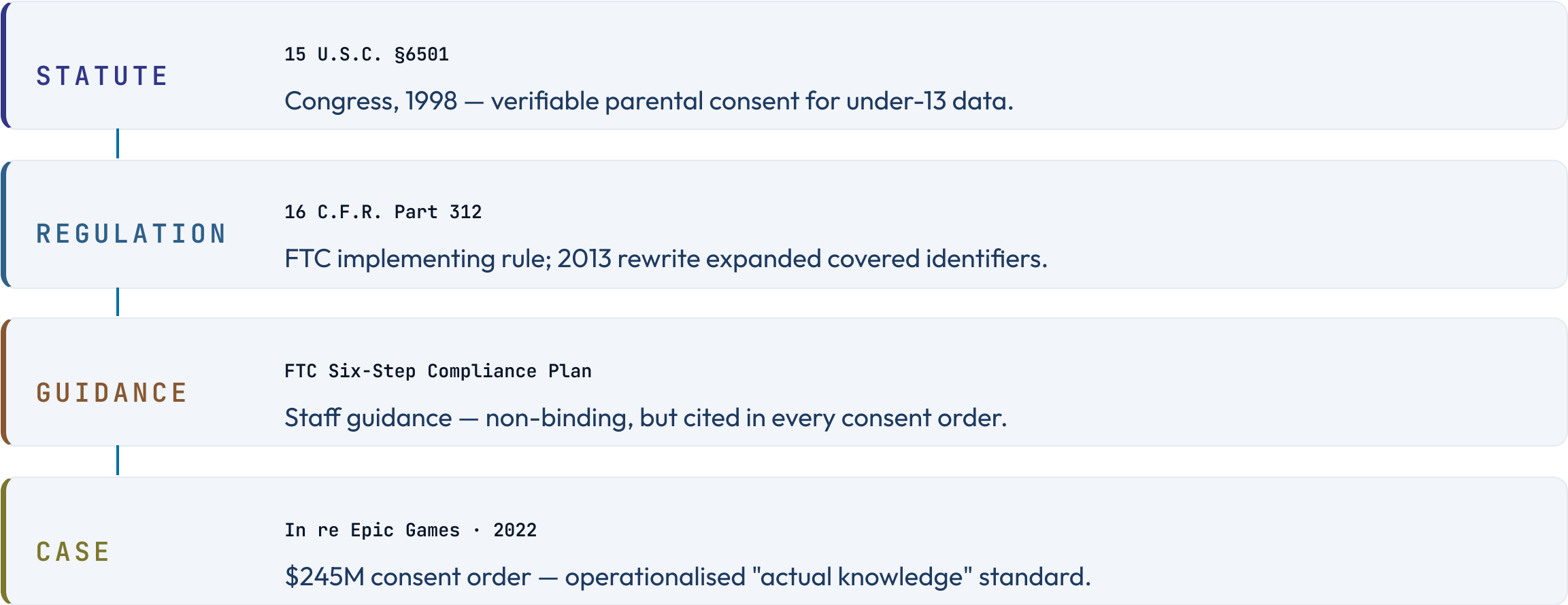
WHY

- Scope** Sale and sharing collapse into one duty — even free programs trigger the obligation.
- Floor** Two-channel minimum drops to one — a homepage link plus a portal now suffices.
- Chrome** The literal link title is now mandated — uniform branding.

ANCHOR 06 · STATUTE → REGULATION → GUIDANCE → CASE

**What actually binds us —
and how far down the
chain we are.**

COPPA — the chain, tier by tier.



COPPA — authority weight, top binds, bottom illustrates.



COPPA — one statute, many branches.

STATUTE

15 U.S.C. §6501 COPPA, 1998

16 C.F.R. Part 312 — FTC implementing rule

FTC Six-Step Compliance Plan – staff guidance

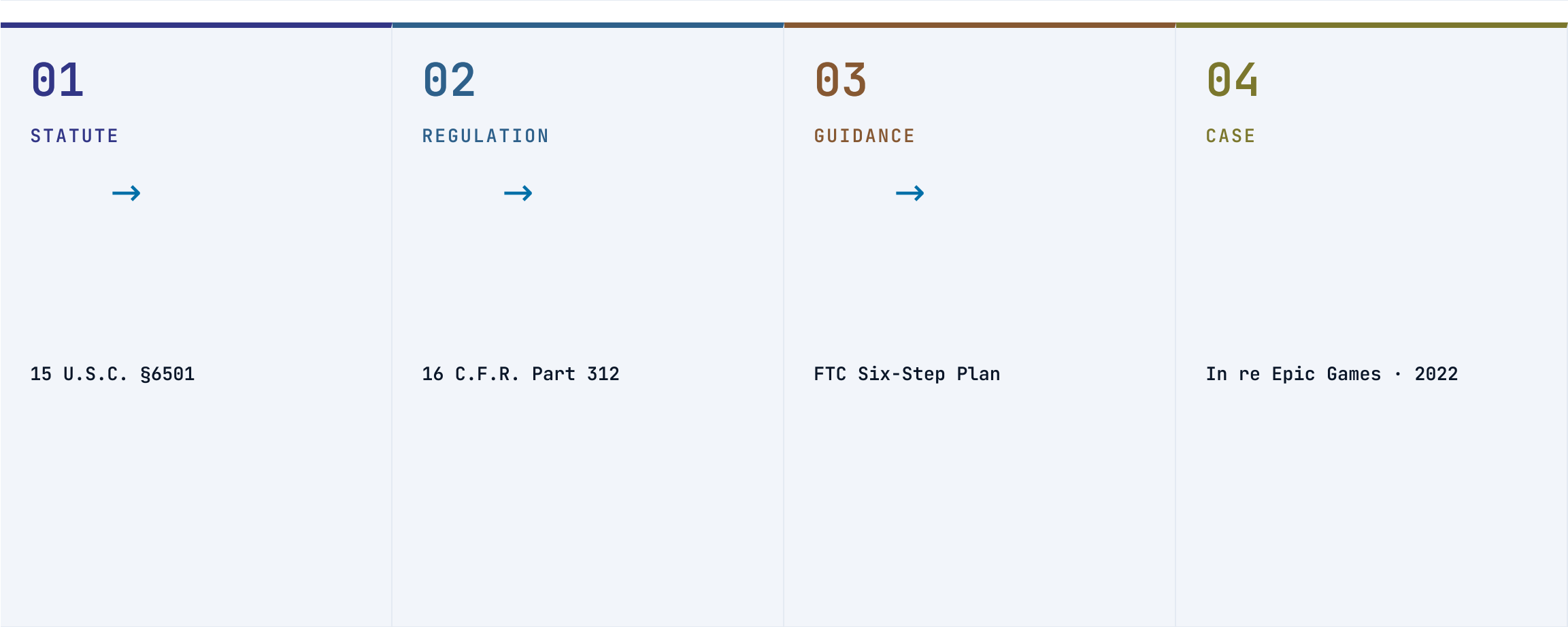
In re Epic Games (2022) — \$245M consent order

In re YouTube/Google (2019) – \$170M consent order

COPPA — bracketed tiers.

STATUTE	15 U.S.C. §6501 Congress, 1998. The binding floor for under-13 data.
REGULATION	16 C.F.R. Part 312 FTC implementing rule; 2013 rewrite.
GUIDANCE	FTC Six-Step Plan Staff guidance — quoted in every order.
CASE	In re Epic Games \$245M consent order, 2022 — defines "actual knowledge."

COPPA — four steps to the operative test.



What this deck delivers.

- 01 Six anchor layouts cover jurisdiction, quotation, regime matrix, motion, redline, and authority.
- 02 Five visual variants per anchor — the strongest of each becomes the shipped default.
- 03 Lean authoring: slot labels auto-lift,

`[x] [-] [
]`

 for state markers, pin-cite typography throughout.
- 04 Three-renderer parity: marp-cli, emulator, and runtime all process the same transforms.
- 05 The other four variants per anchor can be deleted before graduation into the gallery.

LATTICE • LEGAL & REGULATORY • CANDIDATE DECK

**Mark the winners. The
rest goes to the cutting
room floor.**